

Court No. - 32

Case :- WRIT - C No. - 39260 of 2019

Petitioner :- Smt. Neeru Gautam

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Satya Narayan Yadav

**Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Prakash Padia,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(I) Issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 24.10.2019 issued by the respondent no. 3 demanding Rs. 1,29,263/- + other from the petitioner.

(II) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondents not to take coercive steps against the petitioner.

(III) Issue a writ, order or direction in the nature of mandamus commanding and directing the respondent no. 4 to accept the electricity bill of 784 unit which was shown in the meter at the time of PDC (Permanent Disconnection)."

Heard Mr. Anant Kumar Tiwari holding brief of Mr. S.N. Yadav, learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel appearing on behalf of the Electricity Department and perused the record.

At the very outset, learned counsel appearing on behalf of the Electricity Department has stated that the petitioner has got an alternative remedy under Clause 6.5 of the U.P. Electricity Supply code, 2005 to ventilate her grievance.

The learned counsel for the petitioner has not been able to rebut the contention made by the learned counsel for the Electricity Department.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the concerned authority for redressal of her grievance within two weeks from today, her application may be considered and decided by the said authority in accordance with law within a period of four weeks thereafter.

For a period of 7 weeks, the impugned recovery notice/citation dated 24.10.2019 issued by the respondent no. 3 shall remain in abeyance.

It is made clear that this Court has not expressed any opinion with regard to the merit of the case. The authority concerned shall consider the matter on its own merits.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 2.12.2019

Arun